

**DEPARTMENT THREE  
JUDGE STEPHEN GIZZI  
707-207-7303  
TENTATIVE RULINGS SCHEDULED FOR  
TUESDAY, JUNE 23, 2026**

***The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.***

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

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**MAGALY MAGALLON vs. ALTEC INDUSTRIES, INC.  
Case No. CU25-02749**

- 1). Motion to Amend Complaint and Continue Proceeding filed by Plaintiff
- 2). Motion for Protective Order filed by Defendant ALTEC INDUSTRIES, INC.

**TENTATIVE RULING**

**Motion to Amend Complaint**

Plaintiff's motion to amend the complaint is granted. Plaintiff is granted leave to file the proposed first amended complaint that was submitted with the motion, which in view of Plaintiff's death, changes the name of the Plaintiff to Mia Ehsani as Administrator of the Estate of Magaly Magallon.

**Motion for Protective Order**

The court grants the motion for protective order filed by Altec Industries, Inc. The court finds that the declaration of attorney Nathan Searcey that accompanied Requests for Admission, Set One, is not sufficient to establish that the requests for admission beyond the first 35 requests are warranted. The declaration simply uses boilerplate language from CCP Section 2033.050 and then states that there are nineteen causes of action alleged in the complaint. This is not sufficient. Moreover, based on its own review of the requests for admissions beyond the first 35, the court finds the requests to be unduly burdensome. Responding to them would significantly increase the cost of this litigation yet fail to provide useful information.